



**WALTERS LAW GROUP
MEMORANDUM**

TO: Walters Law Group Clients

FROM: Lawrence G. Walters, Esq. LGW

DATE: July 30, 2026

RE: Data Privacy Litigation Risks for Website Operators

Key Lessons from *D.B. et al. v. Bellesa Enterprises US, Inc.* (C.D. Cal. July 14, 2026)

Introduction

A recent decision from the United States District Court for the Central District of California provides important guidance—and a cautionary tale—for website operators that use Google Analytics or deploy other third-party tracking tools such as Meta Pixel or TikTok Pixel.

In *D.B. et al. v. Bellesa Enterprises US, Inc.*, Case No. 2:25-cv-05099-JAK (MARx) (C.D. Cal. July 14, 2026) (attached for reference), plaintiffs brought a putative class action against an adult-oriented video website operator alleging unauthorized disclosure of users' adult content access history and other data to Google in relation to the website's use of Google Analytics. We are aware of many similar claims being asserted throughout the country against website operators in connection with use of similar tracking tools.

While several claims were dismissed against Bellesa, the court allowed key claims to proceed and rejected the defendant's consent defense at the pleading stage. The ruling underscores that even sophisticated operators can face substantial liability exposure if privacy policies and consent mechanisms fail to provide sufficiently specific, conspicuous notice of tracking tools — particularly when sensitive categories of personal information (including but not limited to adult content access history) are involved.

Case Summary and Key Holdings

Plaintiffs alleged that the defendant installed and configured Google Analytics on its website (www.bellesa.co and related sites) in a manner that collected and transmitted to Google:

- Titles and URLs of videos being viewed;
- Cookies that identified the user's Google account; and
- Browser and device fingerprinting (language preference, screen resolution, browser software and version, and operating system software and version).

The court granted in part and denied in part the motion to dismiss. Notable holdings include:

VPPA Claim – Dismissed with Prejudice

- **No "consumer" status under the VPPA:** The VPPA only applies when personal information is collected when accessing video content that the plaintiff rented, purchased, or subscribed to. Here, however, some content was freely available to all users, including unregistered users, so it was possible that the plaintiff's personal information was collected when the plaintiffs accessed the videos for which no subscription was necessary, rather than when the plaintiffs accessed the videos that were accessible only to subscribers. The court found that the plaintiffs failed to allege a sufficient factual nexus between their registration on the site and access to the specific subscription-only video content.
- **No "personal information" under the VPPA:** The VPPA applies only to a narrow category of personal information which "identifies a person as having requested or obtained specific video materials from a video tape services provider." The court found that this definition did not cover the disclosed information (including anonymous cookie strings, browser fingerprints, and video titles/URLs), because an "ordinary person" could not use that disclosed information to identify a specific individual and their video viewing history. Only a sophisticated entity like Google could deanonymize the disclosed information by linking it to other personal information in its possession.

As a result, the court dismissed the VPPA claim with prejudice. Notably, these arguments are only relevant when raising a defense against claims brought under the VPPA, because other data privacy laws (i) do not impose a rental, purchase, or subscription requirement, and (ii) have much broader definitions of personal information. Similar arguments would be ineffectual in relation to other data privacy laws, including state online data privacy laws like the California Consumer Privacy Act or the Florida Digital Bill of Rights.

Consent Defense – Rejected at Pleading Stage

Consent to collect and share users' personal information is a complete defense to claims under the ECPA and CIPA. However, the court found that the plaintiff's plausibly alleged that, although the defendant's Privacy Policy disclosed that the defendant would share the users' personal information with third parties in narrow circumstances, the defendant's Privacy Policy did not "explicitly notify" users that tracking tools would be used to collect and share personal information with third parties such as Google. As such, the court refused to the defendant's motion to dismiss based on the consent defense.

This case suggests that a general statement that the site "may track usage" or share with "third party service providers" is insufficient. In order to better position themselves as obtaining the consent necessary to be able to have a similar case dismissed, sites should explicitly notify users of the specific tracking tools that will be used and the specific third parties with whom the users' personal information will be shared.

Other Claims

- **New York GBL § 349:** The court denied the defendant's motion to dismiss claims brought under New York law, because the plaintiffs had adequately alleged that the defendant's omissions about its data collection and sharing practices were deceptive.
- **California CIPA & UCL:** The plaintiffs' claims under both California laws were dismissed with prejudice, because the plaintiffs were not residents of California and had not alleged that the defendant's conduct occurred in California. The UCL claims were also dismissed, because the plaintiffs failed to allege that the defendant's use of their personal

information caused economic injury. However, the court would allow new plaintiffs to be added if there was a sufficient nexus to California.

- **Common law claims:** The plaintiff's claims related to invasion of privacy, negligence, and unjust enrichment largely survived for the same reasons that the defendant's consent defense failed in relation to the other claims discussed previously. The plaintiff's claims related to breach of implied contract were dismissed without prejudice, because the defendant's Privacy Policy could support such a claim in principle, but the plaintiffs failed to adequately make such allegations.

Implications for Website Operators

This decision is part of a broader wave of litigation targeting the use of tracking tools on websites, especially those dealing in sensitive or adult content. Even when VPPA claims fail, operators potentially remain exposed under:

- Electronic Communications Privacy Act
- State unfair and deceptive trade practices statutes such as NY GBL § 349 and California's UCL
- State privacy statutes such as California's CIPA
- Common law claims for invasion of privacy, negligence, and unjust enrichment

Particular Risk for Adult Content Sites: Courts recognize heightened privacy expectations around pornography viewing history. Vague or contradictory policy language will be construed against the operator.

Recommended Updates to Privacy Policies and Consent Mechanics

We strongly recommend that all website operators immediately review and enhance their data practices. Specific recommendations:

1. Privacy Policy Revisions

Include Specific Disclosures:

- Explicitly name the tracking tools used (e.g., "We use Google Analytics to collect...").
- Explicitly name the third parties with whom the personal information collected from those tools will be shared (e.g., "Information collected with such tools is shared with Alphabet Inc.").
- Adequately describe the categories of personal information collected by these tools, especially in relation to potentially sensitive data related to adult content (e.g., video titles/URLs viewed, device/browser fingerprints, cookie identifiers, IP addresses, etc.).
- Explicitly state the purposes for which personal information is shared with such third parties (e.g., advertising, analytics, personalization, cross-site tracking, etc.)
- Adequately identify the legal basis for such collection and sharing (e.g., consent, legitimate business interest, etc.)

Avoid Contradictory Language:

Remove or qualify any broad statements that "we do not sell or share personal information" if your actual practices involve the use of tracking tools that collect and share personal information with third parties such as Google or Meta for commercial purposes.

2. Consent and Notice Mechanisms

Implement Robust Tracker Consent:

Deploy a clear, conspicuous tracker banner or consent management platform (CMP) that appears before non-essential tracking begins. Offer granular controls (essential vs. analytics/advertising).

Affirmative Opt-In for Sensitive Tracking:

Require users to actively opt in (e.g., checkbox or "Accept All" with clear notice) before Google Analytics, Meta Pixel, or any similar tracking tools collect and transmit content viewing history or other sensitive information.

Just-in-Time Notices:

Provide prominent notice at registration or first website access if personal information will be shared with third parties for specified purposes, with a direct link to the full policy.

3. Data Sharing Compliance Evaluation

Some state privacy laws require enhanced compliance when operators sell or disclose data to third parties for monetary *or other valuable consideration*. If your website receives any such benefits from third parties in exchange for data disclosure, a detailed evaluation of your state privacy law compliance procedures is required.

4. Operational and Technical Recommendations

Other recommendations include (i) conducting a full inventory/audit of all third-party tracking tools and data flows, (ii) limiting collection of video titles/URLs or use hashed/aggregated identifiers where possible, and (iii) review and strengthen contracts with Google and other third-party service providers to include indemnification for their violation of data privacy laws.

Conclusion and Next Steps

The *Bellesa* decision illustrates that courts are scrutinizing the gap between what privacy policies say and what tracking tools actually do. Vague or incomplete disclosures are no longer sufficient — especially for operators handling sensitive content access history. Proactive updates to policies and consent flows can significantly reduce litigation risk and strengthen defenses.

Please let us know if you require any assistance with updating your data privacy compliance.

This Client Alert is provided for informational purposes only and does not constitute legal advice. It is not a substitute for consultation with qualified counsel regarding your specific situation.

For questions or to schedule a review of your privacy practices, contact us at larry@firstamendment.com or (407) 975-9150.